Founder Partnership & Business Blueprint

Consolidated facts, intended operating model, and unresolved agreements

Internal reference — not an executed contract • *November 7, 2026*

1 | Legal identity and evidence status

Legal name	DW Toolbox INC
Entity	Minnesota domestic business corporation; Minn. Stat. Chapter 302A
MN filing number	1657232800022
Original filing	July 16, 2026
Public status	Active / In Good Standing at prior official portal review; confirm current status when used
Registered office	12908 Bayview Rd, South Haven, MN 55382–9606
Registered agent	Benjamin W. Conklin
Authorized shares	500,000 (NOT evidence of shares issued)
Operating brand and website	Drywall Toolbox / drywalltoolbox.com
Principal executive office	Not verified

2 | Founders and present/future ownership

Benjamin W. Conklin — Founder A, registered agent, current holder of 100% of issued shares according to Elliott's representation; corporate director/officer appointments and actual share ledger not verified.

Elliott T. Miller — Founder B, joint active business operator and prospective salaried equity participant; no shares shown as issued to him. The parties have discussed an eventual 30%–40% ownership interest earned progressively through continued service. Exact percentage, term, start date, and equity instrument are not yet agreed.

The founders describe their overall day-to-day workload and responsibility as approximately 50/50. Equal work does not mean equal existing shares, director votes, or formal authority.

3 | Business purpose and scope

Contractor-focused ecommerce and service operations for drywall tools, replacement parts, accessories, part compatibility and schematics, customer sales/support, repairs, returns, shipping, inventory, supplier relations, technology and integration operations. Described capabilities are not asserted as all operationally live.

4 | Actual joint operational model

Elliott: primary lead for order intake/review, customer communications and service, shipping labels/tracking, workflow progress and closure, inventory visibility and reconciliation, repair case intake/approvals communication, and routine exceptions. Additional specialized technology work includes

ecommerce engineering, integrations, deployment coordination and platform maintenance as supported by project references.

Benjamin: primary lead for tool inspection/repair/testing, physical shipment preparation, supplier communication and receiving, replenishment decisions, physical inspection, return/refund/warranty determinations and pricing exceptions.

Shared: purchasing/order placement, picking, packing, inventory counts, busy-period shipping/fulfillment support, business planning, and general operating workload. Either founder may help in the other's primary lane. Operational lead designations do NOT themselves authorize binding contracts, payments, refunds, bank access, share actions, or executive appointments.

5 | Compensation and equity — current negotiation status

Launch salary	**Not agreed. $60,000 gross/year is a prior preliminary full-time negotiation anchor, not an offer or commitment.**
Salary changes	Intent: first raise is triggered automatically after agreed financial sustainability tests, but raise amount is NOT predetermined.
Financial tests discussed	Sustained adjusted operating cash flow; adequately funded inventory/suppliers; payroll affordability; taxes/refunds current or reserved; ~3 months operating reserves; forward outlook.
Review cadence	90-day/quarterly review proposed, not executed.
Equity intention	Final Elliott target range 30%–40%, time-based vesting over an undetermined number of years.
Equity source / instrument	New corporate issuance vs Benjamin's existing-share transfer; restricted shares, options or contractual shares — unresolved.
Prior work credit	To be negotiated; no automatic vesting credit assumed.
Salary vs equity	Distinct legal/financial arrangements; no salary review by itself adjusts vested rights.

6 | Financial, corporate and asset governance

- Confirm actual issued shares, capitalization, shareholder register, articles, bylaws, officers/directors, and corporate tax election before equity approval.
- Preserve company-controlled banking, bookkeeping, payroll, provider accounts, MFA/recovery, lawful role-based access, and primary/backup operators.
- Maintain authoritative commerce boundaries: WooCommerce sales/orders/refunds, payment processor payment lifecycle, Veeqo inventory/fulfillment, QuickBooks accounting; status must be revalidated.
- Inventory pre-existing code, brand, domains, digital accounts and other IP; do not assume prior assets were assigned to the corporation merely because they were used for the business.
- Use appropriate director/board and corporate approvals for binding company commitments; Benjamin's personal signature alone may not bind the corporation.

7 | Agreements and launch readiness

Document set: (A) concise founder-to-founder interim acknowledgment; (B) compensation/equity negotiating schedule; (C) future authorized employment/wage notice, equity grant or transfer, corporate approvals and shareholder governance. Do not use historical LLC operating agreements as current legal instruments.

Prior September 2026 readiness and access documents are snapshots, not November 2026 certifications. Open gates included payment, Veeqo, QuickBooks, backup/rollback, end-to-end checkout and operational ownership. Launch GO requires current verification, owner/approver sign-off and lawful tax, payroll and business requirements.

8 | Information quality and legal boundary

State record: entity, registration, filing date, agent and authorized shares. Founder statement: Benjamin 100% issued shares, approximately equal workload, 30%–40% target range. Reference documents: duties, workflows, architecture and historical access. Unresolved: real capital contributions, issued share counts, salaries, corporate appointments, profitability, tax classification, equity terms, and current system readiness.

This blueprint is descriptive, does not itself create employment, ownership, or binding compensation, and must not be treated as a signed shareholder-control agreement.